BOAT MOORING AND STORAGE AGREEMENT (CONTINUED)

8. This Agreement can be terminated at any time, with no cause given, by the MWR Marina. Such termination will be effective ten (10) calendar days from the date that written notice is placed in the United States mail, addressed to the boat owner(s) at the addresses provided in this Agreement. All terms and conditions of the Agreement applying to any release of liability, or indemnification for liability, will remain in full force and effect (even though by the terms herein, this storage agreement will have terminated or expired) until such time as the boat and trailer has been removed from the MWR Marina or other designated Federal property.

9. Patron agrees to indemnify and hold harmless the United States, the Department of the Navy, and its military, and civilian personnel from any liability in the leasing of mooring or storage facilities and use of any mooring or storage facility equipment. It is also expressly understood that Patron shall indemnify and hold harmless Navy Morale, Welfare and Recreation Division, the installation's Morale, Welfare and Recreation activity, the MWR Marina, and its personnel, in the event that negligence or other fault of the MWR Marina caused or contributed to the loss or claim. Additional considerations:

a. Mooring: Marina staff does not often inspect the mooring chains. Since mooring chains suffer from seawater corrosion and weaken over time, the boat owner is notified that even the Marina staff's periodic inspection of mooring chains cannot ensure safe mooring in all weather. Also, the underwater anchors for this mooring system have been known to move out of position under the pressure of tidal surges caused by inclement weather, especially when moored vessels tie up with mooring lines that are of insufficient in length to account for tidal surges. Therefore, anchors may not serve as adequate assurance against movements of your vessel, which could result in damages to your boat and other boats and property. Be advised that MWR mooring is available at below market rates. MWR Marina passes along the savings that result from reduced maintenance costs and payment of claims in the expectation that the Patron will obtain commercial insurance against MWR's potential negligence.

b. Haul-out/Launching: Haul out, storage, and launching service is also provided at below market rates. MWR Marina passes along the savings that result from the reduced maintenance costs and payment of claims in the expectation that the Patron will maintain insurance against our negligence. In consideration for this savings, the Patron expressly and knowingly agrees to defend and hold harmless from any liability whatsoever, direct or indirect, the United States, Department of the Navy, its military and civilian personnel, as well as Navy Morale, Welfare and Recreation Division, the installation's MWR activity, MWR Marina, and its personnel, for any negligent act or omission whatsoever with respect to any haul out, storage and launching service resulting in personal injury or property damage whatsoever, including damage to the vessel and its engines, tackle and appurtenances.

10. Patron warrants that subject vessel is and shall be maintained in a seaworthy condition, in full compliance with all governmental and regulatory requirements, and covered by customary marine hull and machinery insurance and minimum liability coverage of $100,000/$300,000/$50,000 during the course of this lease.